

26STCV11455 26STCV11455

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 26STCV11455 Hearing Date: August 6, 2026 Dept: 836

APPLICATION FOR RIGHT TO ATTACH ORDER

Date: 8/4/26

(1:30 PM)

Case

Name: Shawn R.

Carpenter Living Trust v. AmWeCo LLC, et al. (26STCV11455)

TENTATIVE RULING:

Plaintiff Shawn R. Carpenter Living Trust application for right to attach order with respect to defendant AmWeCo LLC is GRANTED.

Pursuant to CCP §484.090, the Court finds: (1) the claim is one upon which attachment may be issued; (2) plaintiff has established the probable validity of the claim; (3) attachment is not sought for any purpose other than recovery on the claim; and (4) the amount to be attached is greater than zero.

Plaintiff Shawn R. Carpenter Living Trust's claims against defendant AmWeCo, LLC are for amounts due under a promissory note. On August 28, 2023, the parties executed a Promissory Note ("Note"), whereby plaintiff agreed to lend defendant \$250,000. (Carpenter Decl. ¶ 4; Verified Compl. Ex. 1.) In exchange, defendant agreed to repay the amount, plus any interest or any other fees payable under the Note, by August 28, 2024. (Carpenter Decl. ¶¶ 4-5.) By August 28, 2024, defendant failed to tender the entire amount due under the Note, which required plaintiff to make multiple demands of payment

from defendant thereafter. (Carpenter Decl. ¶ 6.)

On May 23, 2025, defendant made a partial payment of \$25,000. (Carpenter Decl. ¶ 7; Verified Compl. Ex. 2.) On September 29, 2025, defendant made another partial payment of \$25,000. (Carpenter Decl. ¶ 8; Verified Compl. Ex. 3.) By October 8, 2025, plaintiff demanded payment of the remaining balance of \$293,242. (Carpenter Decl. ¶ 9; Verified Compl., Ex. 4.) On November 14, 2025, defendant made a third partial payment of \$50,000. (Carpenter Decl. ¶ 10; Verified Compl. Ex. 5.) To date, defendant has not made any further payments, and the current outstanding balance under the Note is \$257,306.60. (Carpenter Decl. ¶ 11.)

Plaintiff has shown that defendant is in breach of the Note and has failed to cure the defect. (Carpenter Decl. ¶¶ 4-11; Verified Compl. Exs. 1-5.) Defendant has failed to pay the remaining balance of \$257,306.60 due under the Note. (Carpenter Decl. ¶ 11.) Thus, the Court finds that plaintiff will likely prevail on its breach of contract claim.

In so finding, the Court disregards defendant's untimely opposition, filed August 3, 2026. (See Cal. Rules of Ct., rule 3.1300(d).) Even if the Court were to consider defendant's late opposition, the result would be the same. Defendant claims plaintiff does not have a probably valid claim for breach of the Note because the parties purportedly entered into a settlement agreement for such claim. It is undisputed there is no such written settlement agreement. Nor does the evidence before this Court otherwise establish the existence of any agreement to settle plaintiff's claim. To the contrary, up until July 31, 2026, the parties were still attempting to negotiate the terms of an agreement. (See Schuman Decl. ¶ 7 & Ex. E [e-mail thread regarding settlement negotiations].) Even though defendant may have sent \$25,000 to plaintiff on May 14, 2026, which defendant denominated as a settlement payment (Latham Decl. ¶¶ 10-13 & Ex. B), that conduct alone is insufficient to establish any enforceable settlement agreement between the parties, particularly in light of contemporaneous communications between the parties evidencing no meeting of the minds, as well as defendant making no further purported "settlement payments" to plaintiff as further evidence of conduct to establish the existence of a settlement agreement. (See Schuman Decl. ¶¶ 4, 6 & Exs. A, B.)

Accordingly, the Court finds that plaintiff has established the probable validity of its claim upon which attachment may be had.

With respect to the property that plaintiff seeks to attach, plaintiff may attach any property of defendant per CCP § 487.010(a) and CCP § 488.300, et seq.

Based on the foregoing, the application is GRANTED. A writ of attachment in the amount of \$257,306.60 shall issue upon the posting of a bond in the amount of \$10,000 by plaintiff. (CCP § 489.220.) The Court will sign the proposed orders electronically received on May 4, 2026.